

ENTITLED: “AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, A PARCEL OF LAND BEING SITUATED IN A PORTION OF THE NORTH HALF OF THE NORTH HALF OF THE NORTHEAST QUARTER OF THE NORTHEAST QUARTER OF SECTION 11, TOWNSHIP 13 NORTH, RANGE 67 WEST OF THE 6TH P.M., LARAMIE COUNTY, WYOMING, (GENERALLY LOCATED AT THE I-25/I-80 INTERCHANGE, A.K.A. 4121 W. 5TH STREET).”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the City of Cheyenne hereby finds as follows:

- (a) That Profile Properties, LLC, owner of a parcel of land being situated in a portion of the North Half of the North Half of the Northeast Quarter of the Northeast Quarter of Section 11, Township 13 North, Range 67 West of the 6th p.m., Laramie County, Wyoming, has petitioned the governing body of the City of Cheyenne to annex the real property described herein and to make it a part thereof; and
- (b) That an accurate annexation map of said property accompanies this ordinance, said map prepared by John Steil, a Professional Land Surveyor, registered in the State of Wyoming, PLS Number 2500; and
- (c) That the annexation of said area is for the protection of health, safety, and welfare of the persons residing in the area and the City of Cheyenne; and
- (d) That the urban development of the area sought to be annexed will constitute a natural, geographical, economical and social part of the City of Cheyenne; and
- (e) That the area is a logical and feasible addition to the City and that the extension of basic services such as water and sewer systems, police and fire protection and other services customarily available in the City of Cheyenne can be furnished; and
- (f) That the area is adjacent to the City of Cheyenne and is currently zoned LI – Light Industrial – by the Laramie County Commissioners; and
- (g) That the City of Cheyenne does not own or operate its own electrical utility, and its governing body is prepared to designate a utility to serve the annexed area pursuant to W.S. 15-1-410, and to authorize the designated utility to serve the entire annexed area.

Section 3. That all of the real property described herein be an addition to the City of Cheyenne, Laramie County, Wyoming, and the same hereby is annexed as zone District LI – Light Industrial – and shall become a part thereof.

Section 4. That the City Clerk is directed to file an executed copy of the annexation ordinance and map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming, and shall also notify the City Engineer's Office to affix said property onto the official City Map.

Section 5. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any phrase, clause, sentence, paragraph or section of this ordinance is declared illegal or unconstitutional, such illegality or unconstitutionality shall not affect any of the remaining phrases, clauses, sentences, paragraphs and sections.

Section 6. That this ordinance shall be in full force and effect upon its publication.

FIRST READING:_____

SECOND READING:_____

THIRD AND FINAL READING:_____

RICHARD L. KAYSEN, MAYOR

(SEAL)

CAROL INTLEKOFER, CITY CLERK

published:_____

ANNEXATION REPORT & STAFF REPORT

4121 W. 5th Street
Summation

Annexation

CASE NUMBER:	A-12-00001	FILE CODE:	PROF-A
PUBLIC HEARING:	May 14, 2012		
RESOLUTION ADOPTED:	May 29, 2012		
REQUIRED DOCUMENTS:	All required documents have been submitted and reviewed by staff.		
RECOMMENDATION:	Staff recommends adoption of the Ordinance		

June 12, 2012

ANNEXATION REPORT & STAFF REPORT**4121 W. 5th Street**
Summation

Annexation

CASE NUMBER: A-12-00001 **FILE CODE:** PROF-A

OWNER: Profile Properties, LLC 307-630-5212
c/o Scot Cook
PO Box 2836
Cheyenne, WY 82003

AGENT: John Steil 307-634-7273
c/o Steil Surveying Services, LLC
PO Box 2073
Cheyenne, Wyoming 82003

REQUEST: Annexation to the City of Cheyenne

LOCATION:

- (1) Legal Description: Portion of N1/2 N1/2 NE1/4 NE1/4 of Section 11, Township 13 North, Range 67 West, of the 6th p.m., Laramie County, Wyoming
- (2) Generally located at the I-25/I-80 Interchange
- (3) Address: 4121 W. 5th Street
- (4) Map Page: D-116

CURRENT ZONING: LI

PROPOSED ZONING: No change

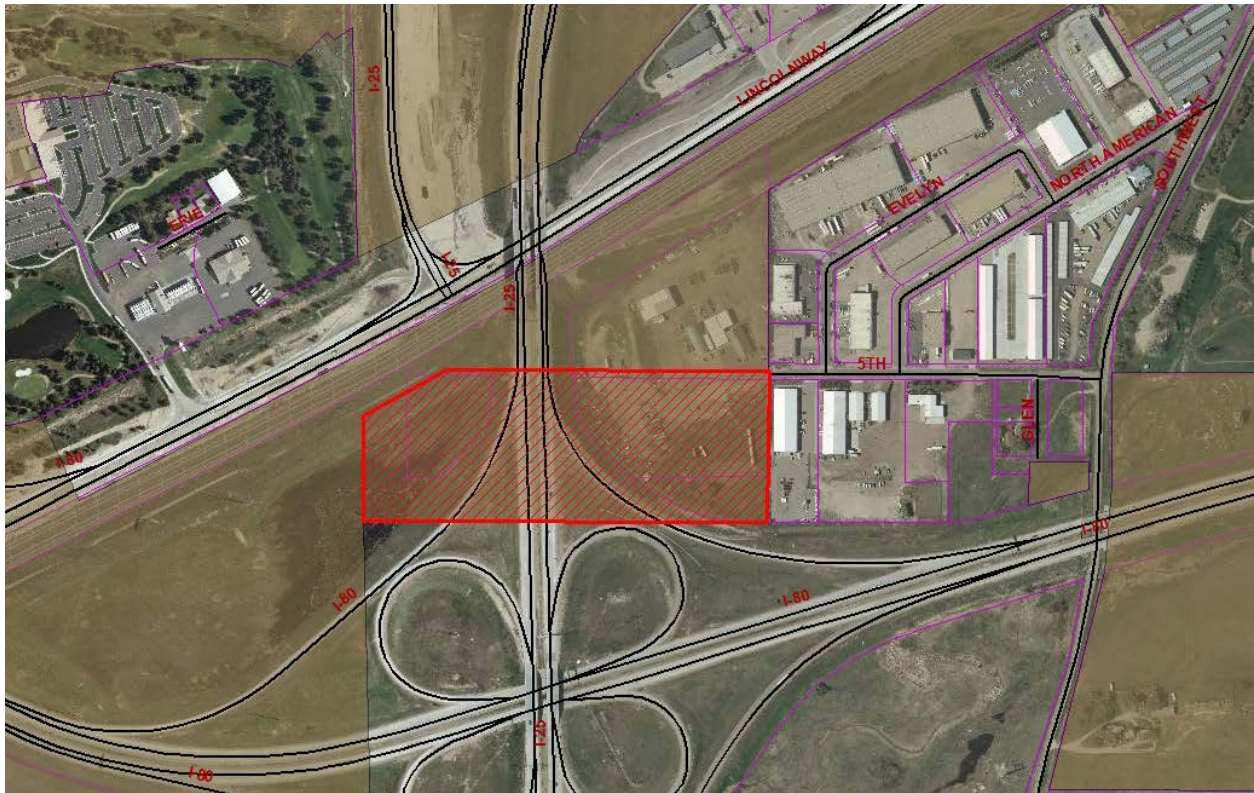
EXISTING LAND USES: Light industrial (+/- 17.19 total acres)

PROPOSED LAND USE: No change

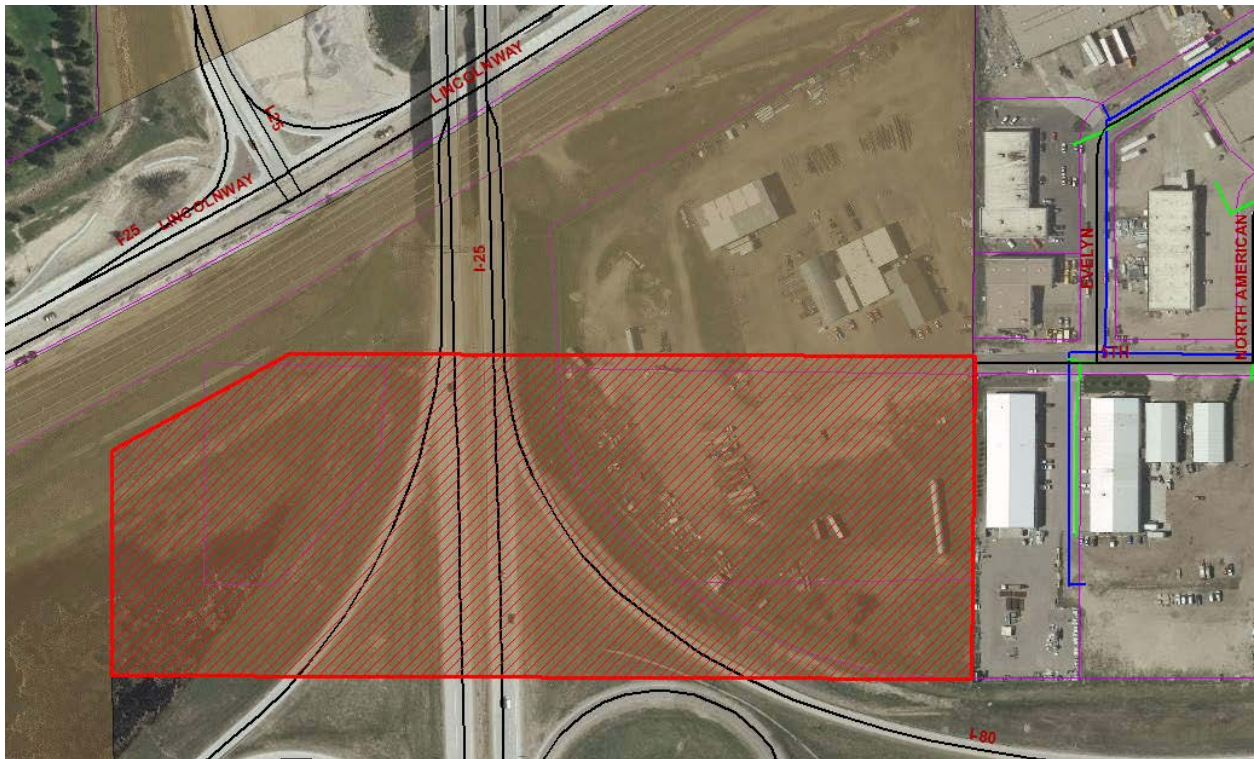
COMPREHENSIVE PLAN DESIGNATIONS: The land-use plan in PlanCheyenne indicates the following designations for the area: *Mixed-Use Commercial* (per *PlanCheyenne*, 2006). This annexation area and areas beyond are projected for Urban Growth.

DESCRIPTION OF SITE AND SURROUNDINGS: The annexation area contains a seven-acre property with a recently constructed warehouse served by a sewage holding tank, and adjacent interstate right-of-way. On March 26, 2012, City Council adopted Resolution No. 5369, approving an exception to the 201 Agreement to allow the use of the holding tank with the condition that the subject property annex to the City now and that the owner sign a consent to annex the adjacent property to the north prior to subdividing or disposing of that property, which was recorded April 3, 2012.

SURROUNDING	LAND USE(S)	ZONING	ANNEXATION STATUS
North	Construction business	LI	County
South	Interstate	LI	City
East	Light industrial	LI	City
West	Vacant	LI	County



Annexation area in red.



Water lines in blue; sewer in green.



Facing the subject property looking southwest



Facing the subject property looking south

Improvements: The property has no street frontage other than on the Interstate and street improvements are not required in order to annex per the abovementioned agreement. Sewer service is available in West 5th Street, however, the property is not required to connect to it at this time due to the 201 exception. Water is available in West 5th Street as well. Future development actions may require connection and other improvements.

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Platting: The property is currently unplatted. The owner has indicated the intention to plat the property concurrently with the annexation.

Zoning: The property is zoned LI, Light Industrial.

REVIEWING AGENCY AND REVIEWERS COMMENTS:

City Surveyor: Boundary data and legal descriptions appear in order.

Engineering: The preliminary Soils Map submitted with the annexation does not satisfy the requirements pursuant to Section 1.16.030(B)(2) of City Code, however the City Engineer's Office is amenable to postponing submittal of the final soils report until such time as detailed construction plans are submitted for the public infrastructure.

Traffic Engineering:

1. Access to State Highways shall be in conformance to the WYDOT Access Manual and will be subject to approval of the WYDOT District Engineer (ref. Ch. 4, Section 4.2.6, RSSPDS).
2. When fewer accesses onto a road or street would be favorable, and minimum spacing from property lines would not necessarily apply, shared or joint driveway approaches, and/or access easements should be provided (ref. Ch. 4, Section 4.3.6, RSSPDS).

WYDOT: Annexation Map should show the I-25 and I-80 right-of-ways. Area of annexation may be impacted in the future based on the I-80/I-25 Interchange Study.

AGENCIES RESPONDING WITHOUT COMMENT: BOPU, CenturyLink, Cheyenne Light Fuel & Power, City Attorney, County Assessor, Drainage Engineering, Engineering Tech/GIS, Fire, School District 1, MPO, Optimum, Police.

AGENCIES NOT RESPONDING: Emergency Management/Dispatch, County Attorney, County Clerk, County Commissioners, County Fire District 1, County Planning, County Public Works, County Sheriff, Public Works, Sanitation.

OTHER COMMENTS RECEIVED: None

ANNEXATION ELIGIBILITY DATA/ANALYSIS: Before any territory is eligible for annexation, the governing body of any city or town, at a hearing as provided in W.S. 15-1-405, shall find that:

- 1) The annexation of the area is for the protection of the health, safety, and welfare of the persons residing in the area and in the city or town. **Findings:** Future required connections to City services in the Urban Area helps prevent overuse of the aquifer and possible contamination from septic systems. Urban densities are most appropriately served by full-time professional fire services and City police.
- 2) The urban development of the area sought to be annexed constitutes a natural, geographical, economical, and social part of the annexing city or town. **Findings:** The property is approximately 52% contiguous to the existing City boundary. The site is located within the PlanCheyenne comprehensive plan area, which includes the following land use designations on the future land use plan: Mixed-Use Commercial.
- 3) The area sought to be annexed is a logical and feasible addition to the annexing city or town and the extension of basic and other services customarily available to the residents of the city or town shall, within reason, be available to the area proposed to be annexed. **Findings:** The City has the capacity to serve more people and businesses with its water and sewer system. This area can be supported by City services, such as fire protection, police protection, and garbage collection. The proximity to existing urban development is

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an opportunity to provide City services in a fiscally responsible manner. PlanCheyenne advances urban development in this area and this area is located in the 201 boundary both of which would require new development to be connected to City sewer. Sewer and water service is available in West 5th Street.

- 4) The area sought to be annexed is contiguous with the annexing city or town, or the area meets the requirements of W.S. 15-1-407. **Findings:** The property is approximately 52% contiguous with existing City limits.
- 5) If the city or town does not own or operate its own electric utility, its governing body is prepared to issue one (1) or more franchises as necessary to serve the annexed area pursuant to W.S. 15-1-410. **Findings:** Franchises are in place to serve this property.
- 6) The annexing city or town, not less than twenty (20) business days prior to the public hearing required by W.S 15-1-405 (a), has sent by certified mail to all landowners and affected public utilities within the territory a summary of the proposed annexation report as required under subsection (c) of this section and notice of the time, date, and location of the public hearing required by W.S. 15-1-405 (a). **Findings:** The required information was sent April 6, 2012, to meet the requirement of this provision.

ANNEXATION REPORT DATA: In compliance with 15-1-402 (c) the following information is provided:

- (i) A map is not required for this report based on the absence of exercising the authority granted under W.S. 15-3-202 (b) (ii).
- (ii) The total **estimated** cost of infrastructure improvements required of the landowners by the City related to the annexation is approximately \$0.00. All improvements are deferred until time of development.
- (iii) Services customarily available to City residents include water, sewer, sanitation, police and fire protection. Sewer service is available to the property currently in West 5th Street. Water lines exist in the adjacent West 5th Street as well. Police and fire services will be available upon annexation. Water and sewer services are provided upon application and payment to the Board of Public Utilities, with sanitation services occurring concurrently. Provision of these services is initiated by the property owner.
- (iv) Fees for water, sewer, and sanitation services are a variable amount for commercial units, based upon volume. Tap fees and for commercial units tap fees vary based on the size of the tap required.
- (v) The current property tax mill levy imposed is 66.00 and projected property tax mill levy imposed by the city is 71.00.
- (vi) The infrastructure described in (ii) above includes improvements required within the existing boundaries of the municipality to accommodate the proposed annexation.

Encl: Annexation Ordinance
Annexation Map

cc: File